MEGA Privacy Policy

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Introduction

When you are a user of Mega Cloud (whether a free user, or on a Pro or Business plan with MEGA VPN and MEGA PASS bundled for free), or if you are a user of MEGA S4, this is the Privacy Policy of MEGA Privacy LLC (Hungarian Cg. 13-09-239012).

When you are a user of MEGA VPN or MEGA Pass on a standalone paid plan, this is the Privacy Policy of Mega Privacy (NZ) Limited (NZ company number 9324253).

In all cases, throughout these terms, we refer to "**MEGA**", "**we**", "**us**" or "**our**".

1. This Policy governs the processing of your personal data as data controller. The terms "**Personal data**", "**processing**" and any other relevant terms are used as defined in the European Union's General Data Protection Regulation (EU) 2016/679 ("GDPR"). Processing includes collection, storage, and all of the ways we use, and allow you to use, personal data when we provide our services.

2. **Important:** We store Personal Data in our primary data centres in Japan, Canada and/or the European Union. In order to provide our services, Personal Data may transit or be temporarily stored on servers in other countries, the full details of which can be found on our website. In this Policy, 'Personal Data' refers to Account Data and Usage Data, together, as those terms are defined below.

3. None of your Personal Data is stored in, or made available from, the United States of America. We do not collect or store any data that is not

mentioned in the present Policy. We will never sell your Personal Data to a third party.

4. This Policy does not deal with Your Files (the actual encrypted files that you upload, access and share using our services) or Your Chats (the encrypted text, voice and video chats you engage in using our services) because they are not personal data: we cannot decrypt Your Files and Chats thus they are not information relating to an identified or identifiable individual.

5. The GDPR provides rights to European users, but, as a leading privacy company, to the extent possible, we aim to make the GDPR protections and rights available to all our users globally in respect of their Personal Data wherever they may live.

Account Data

6. This is the section of this Policy that covers account information you give us, and metadata and records of financial transactions that we generate in relation to your access to the services, including, where applicable, MEGA Pass and MEGA S4. The following specific terms apply:

    6.1. When you sign up for particular services you will need to give us the details required in our registration form and must keep that information up to date, including any payment information.

    6.2. For paid plans, MEGA and payment processors that you use to make payments, retain account and payment information

including any tax identification and a record of all transactions on your account. We do not hold your credit card data.

6.3. When you purchase or use paid services (including services involving cryptocurrency or other regulated payment methods), MEGA may collect and retain certain payer or identity information from you and share it with our payment processors. *Where required, we will obtain your consent before sharing such information.*

6.4. When you access our services, our systems may retain the following metadata in unencrypted form:

6.4.1. A unique device ID for the device used to log in to our services (that device ID doesn't include the serial number, brand or model of your device);

6.4.2. Browser type, device type and/or operating system of the devices from which you have logged in to MEGA, as applicable;

6.4.3. IP address and port information used for: logging in to our services; API usage; file uploads; file, chat, folder and album links; and VPN usage (including time and dates of those events);

6.4.4. The country that we expect you are accessing our services from (inferred by matching your IP address to a public IP address database);

6.4.5. Takedowns and account suspensions;

6.4.6. Our communications with you; and

6.4.7. Certain account settings, including any avatar picture.

7. For Android users, MEGA VPN requests location permission only for the Trusted WiFi feature. Your location is in fact not used, only your trusted WiFi network's SSID which is stored on your device to manage connections. This data is never shared with MEGA.

8. We collect, store, use and otherwise process Account Data so that we can provide the services you have contracted to obtain from us under our Terms (GDPR 6(1)(b)). We also have a legitimate interest (GDPR 6(1)(f)) in processing Account Data so that we can (i) maintain and improve our systems and services, (ii) prevent service abuse and (iii) ensure our compliance with international regulatory requirements.

9. You can download part of your Account Data at https://mega.nz/fm/account/security while you are logged into your account.

10. If we have disclosed your Account Data to any third party (such as a compliance authority), we will inform them of any correction where possible and will also inform you about the third parties to whom the data has been disclosed where lawful and appropriate.

Usage Data

11. This is the section of this Policy that covers data relating to your activity using our services, including MEGA Pass and MEGA S4 ("**Usage Data**"). Our Cookie Policy also provides more specific information on certain types of Usage Data and your rights to control whether it is collected or not and what it is used for.

12. When you use our services, our systems may retain the following metadata in unencrypted form:

    12.1. File sizes, versioning order and parent-child file relationships;

    12.2. System logs and event timestamps;

    12.3. VPN bandwidth usage;

    12.4. The email address of anyone you have specifically made a contact using MEGA's systems;

    12.5. Contact email addresses of chat participants, chat commencement time, chat duration and moderation activity;

    12.6. The times and participants of your successful and unsuccessful chats; and

    12.7. Information necessary for price calculation (e.g. storage or bandwidth used).

13. Subject at all times to the rights you have pursuant to our Cookie Policy, the following specific terms apply:

    13.1. We may:

        13.1.1. collect Usage Data to assist in the operation and improvement of our services;

        13.1.2. analyse and use Usage Data for marketing or statistical purposes as well as to improve the way we provide services to our users; and

13.1.3. serve advertisements or use third-party advertising companies to serve advertisements on our services and on third-party sites, as well as to assist us in analysing our marketing and other business efforts.

13.2. We collect, store, use and otherwise process Usage Data so that we can provide the services you have contracted to obtain from us under our Terms (GDPR 6(1)(b)). We also have a legitimate interest (GDPR 6(1)(f)) in processing Usage Data so that we can (i) maintain and improve our systems and services, (ii) prevent service abuse; (iii) ensure our compliance with international regulatory requirements and (iv) give users promotional material and special offers on our services.

Retention

14. We retain Personal Data as long as your account is active. After account suspension or termination, including where the administrator of a Business Account, within which you have used the services, terminates that Business Account, we may, but are not obliged to, retain Personal Data if enforcement action is likely or commenced under our Terms, our Cookie Policy, or Takedown Guidance Policy or for 12 months, whichever is longer, or in the case of records of financial transactions relating to your account for such period of time as we are legally required to retain such information. Users sometimes request that an account be re-activated so we keep Account Data for 12 months for that purpose. Where there is no enforcement action likely or commenced and the 12 month period has expired, or after such longer period as is applicable in the case of records of financial transactions relating to your account that we are legally required to retain, Account Data and Usage Data will

be anonymised, and we will never re-identify that data, but where you are a contact of, have had a folder or album shared with you by, or have chatted with, another MEGA user, those details will continue to be retained to allow services to continue for those other users.

Direct marketing

15. We may use your email address for marketing or targeted advertising purposes and sending you information about MEGA's new products, upgrades and other marketing material from time to time. You can opt out of receiving marketing material at any time by clicking the 'unsubscribe' link in any emails you receive, or by updating your preferences in your account settings. We will abide by any email unsubscription request (other than those we need to send for invoicing, security or service updates and other service provider purposes).

MEGA Pass

16. We collect and retain the following information concerning your use of MEGA Pass:

    16.1. Account Data in accordance with clause 6.4 of this Policy, including your IP address, devices connected to your account, name and email address associated with your account but excluding the data set out at clauses 6.4.1 to 6.4.7 which are not relevant to your use of MEGA Pass.

    16.2. Usage Data in accordance with clause 12 of our Policy, including data relating to your activity using MEGA Pass such as login

timestamps, how many items you store, and how much storage space you use.

MEGA S4

17. As noted above, we process your personal information because we have contracted with you to do so under our Terms, this Policy, our Cookie Policy and our Takedown Guidance Policy. We cannot provide our services without that data. Other data that is not personal information is also dealt with by us in accordance with our Terms, this Policy, our Cookie Policy, and our Takedown Guidance Policy.

18. We will process your S4 Files in compliance with applicable privacy laws, including GDPR.

19. The following specific terms also apply in relation to MEGA S4:

    19.1. When you upload an S4 File, we may generate and store previews of images, videos and certain other types of file. We gather a small amount of metadata about the type of file, but that does not disclose the content or information that the file contains. In relation to metadata, see the section specifically covering Account Data.

    19.2. When you delete one of your S4 Files it will be made inaccessible, marked for deletion and removed when the next appropriate file purging process is run, subject to any retention specifically allowed under the present Policy and General Terms of Service. After account termination, all your S4 Files will be marked for deletion and removed when the next appropriate file purging

process is run, subject to any retention specifically allowed under the present Policy and the Terms of Service.

19.3. If you delete a deduplicated S4 File from your account, that will not affect other users with the right to access their copies of that S4 File.

19.4. We may, but are not obliged to, keep your S4 Files after your account has been suspended or terminated. In particular, we may, but are not obliged to, keep your S4 Files where we consider it necessary for evidential purposes relating to a breach of the Terms or with respect to current or anticipated action by any competent enforcement authority or other third party.

Others

20. Mega participates in Lantern, the first cross-platform signal sharing programme for companies to strengthen how they enforce their child safety policies. When appropriate, the signals shared in the Lantern programme are personal data.

21. We process the personal data mentioned in this section based on our legitimate interest and that of third parties and we always restrict our data processing to the minimum necessary and proportionate amount of data.

Business Accounts

22. For Business Accounts, the administrator of that account can see and deal with the files and data associated with all users within that account

(including any Personal Data). In addition:

22.1. if the Business Account is suspended or terminated, the action will affect the data and Personal Data of every user within that account;

22.2. the administrator of the Business Account will be able to see and deal with, change or delete the files and data associated with every user within that account; and

22.3. the administrator of the Business Account will be able to terminate any user's account within the Business Account, restrict or disable usage of the account, change any user's password and otherwise deny access to the account and that user will then lose access to all information connected to the Business Account.

Your own security practices are critical

23. We strongly urge you to use best practices for ensuring the safety of your systems and devices (e.g. via strong unique passwords, two-factor authentication, security upgrades, firewall protection, anti-virus software, securing devices). MEGA will never send an email asking for your password, so do not be fooled by any such email since it will not be from us. We cannot guarantee the security of computers or devices nor of transmission from and to your device over the Internet and thus cannot guarantee there will be no unauthorised access. Also, if you lose or otherwise allow access to your password or encryption keys, you will lose the security of all your data. **If you forget your password you will lose access to all your data unless you have exported and retained a Recovery Key**. Using the same password for MEGA as you have used at

other sites can lead to others accessing and taking control of your MEGA account if one of those other sites is breached or hacked.

Disclosure for civil or criminal enforcement

24. If we think it is necessary or we are obliged by law in any jurisdiction, then we are entitled to give Your Files, Your Chats, any Account Data and any Usage Data to competent authorities, even if those items are encrypted. We reserve the right to assist any law enforcement agency with investigations, including disclosure of information to them or their agents. We also reserve the right to comply with any legal processes, including data breach notification processes, subpoenas, search warrants and court orders initiated by enforcement authorities or other third parties. We may disclose Your Files, Your Chats, any Account Data, any Usage Data to enforce or apply our Terms, our Cookie Policy, our Takedown Guidance Policy, this Policy or any other agreement we have with you, or to protect the rights, property, or safety of us or our other users, third parties or the operation of our services. For more details on disclosure to competent enforcement authorities and other third parties, see our Takedown Guidance Policy.

MEGA's data processors: service providers to MEGA

25. You have a contract with MEGA but some ancillary services (including payment and personal information processing) may be provided by MEGA's service providers, including Mega Cloud Services SL (Spain), subject to applicable laws. They act as processors of your Account Data and Usage Data and MEGA remains liable for their actions. All such entities are located in Europe or in countries (such as Canada, Japan or New Zealand) that the European Commission has determined to have an adequate level of protection under Article 45 of the GDPR. Our payment

processor partners act as independent data controllers and remain fully responsible for all the data processing performed by them.

No commercial sale of data

26. We will never sell your Personal Data. We will not disclose or otherwise provide it to a third party, or make any other use of any of them, for any purpose which is not specifically allowed under this Policy, our Cookie Policy, our Terms or our Takedown Guidance Policy or is not incidental to the normal use of our services. The only exception to this clause is where MEGA itself, or its business, is sold or proposed to be sold, in which case we are entitled to make such disclosure or provision to a purchaser or prospective purchaser of the business.

MEGA's data security

27. Data security is very important to MEGA, whether that is your personal information or any other Data. That is why we publish our client-side browser and mobile app software, provide a bug bounty to encourage reporting on any issues, and why we have provided information in this Policy on collection and storage of all Data whether or not it is personal information. For more information on our security practices, see our blog.

Law

28. Subject to the rights that you may have under applicable laws in your country, this Policy and its interpretation and operation are governed solely by Hungarian law when your agreement is with Mega Privacy LLC and by New Zealand law when your agreement is with Mega Privacy

(NZ) Limited. Subject to those rights, you, MEGA and all users, submit to the exclusive jurisdiction of the courts as further described in our Terms.

Contact and complaints

29. Questions and comments regarding this Policy or your rights are welcomed and should be addressed to privacy@mega.nz. Any requests for access to, or correction of, Account Data that is not available to you when you are logged into your account, or if you cannot log in to your account, should be made to privacy@mega.nz specifying the information in question. For a comprehensive list of contact details for MEGA, and payment processors, see our contacts page. The information will be provided promptly, and at least within one month, without charge unless the request is manifestly unfounded or excessive.

30. If you are in Europe or otherwise have the right to lodge a complaint with a supervisory authority, you can find contact details of our supervisory authority on our contacts page.

31. If you are a resident of California, click here to read our Additional Privacy Notice for California Residents under the California Consumer Privacy Act (CCPA).

Your privacy rights

32. You have the right to:

    32.1. access your personal information and information about how we process it – you can obtain a confirmation that we are processing

your data and information on how we process it. We suggest that you make a request in writing.

32.2. object to the processing of your personal information, depending on the processing activity – this allows you to ask us to stop processing your data at any time. Where we rely on legitimate interest, you must give specific reasons why you are objecting to the processing of your data.

32.3. rectify – you have a right to have your personal information corrected if it is inaccurate and to have incomplete personal information completed.

32.4. erase (also known as the right to be forgotten) – in certain circumstances you can ask for the personal data we hold about you to be erased from our records. Your personal data will be erased where the data are no longer needed for their original processing purpose, or you have withdrawn your consent and there is no other legal ground for processing, or you have objected and there are no overriding legitimate grounds for the processing, or erasure is required to fulfill a statutory obligation under the EU law or the right of the national law.

32.5. request data portability – you can ask to have personal data we hold about you transferred to another organisation.

32.6. restrict processing your personal information – where certain conditions apply, you have a right to restrict the processing of your personal information.

32.7. withdraw your consent at any time – without affecting the lawfulness of processing based on consent before its withdrawal.

Changes to our Policy

33. We may make changes to this Policy in the future. Any changes will be notified to all users in accordance with our Terms.

Last updated 02.03.2026 and effective 02.04.2026

The Privacy Company

Servicios en la nube cifrados por el usuario

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Contáctanos

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Política de notificación y retirada

Informe de transparencia

Política de Cookies

Ajustes de Cookies

Disputa de derechos de autor